

A general demurrer, “admits the truth of all material factual allegations in the complaint;” the plaintiff’s “ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court” (*Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 496; *Stella v. Asset Management Consultants, Inc.* (2017) 8 Cal.App.5th 181, 190 [“We assume the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.”].)

Plaintiffs’ complaint was filed using Judicial Council Form *COMPLAINT – Contract (PLD-C-001)* (“PLD-C-001”). Item 8. of PLD-C-001 states “The following causes of action are attached and the statements above apply to each”. PLD-C-001 then lists possible causes of action and boxes to be marked indicating that cause of action applies. Plaintiffs did not mark any of the potential causes of action. Further, Plaintiffs’ complaint contains no factual information about the incident leading to filing the complaint or any specific facts other than naming the person Plaintiffs are suing.

Defendant contends that Plaintiffs have both failed to state a cause of action and have failed to plead sufficient facts to be a cause of action. Defendant is correct. Accordingly, Defendant’s demurrer is sustained with leave to amend.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** July 14, 2026.
(Judge’s initials) (Date)

(35)

Tentative Ruling

Re: **Rakesh v. Segway, Inc. et al.**
Superior Court Case No. 25CECG01317

Hearing Date: July 15, 2026 (Dept. 403)

Motion: Application for Admission *Pro Hac Vice*

If oral argument is timely requested, such argument will be heard on Thursday July 16, 2026 at 3:30 pm.

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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